SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: HON. BENJAMIN T REYES II
HEARING DATE: 03/25/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 16

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-
https://www.zoomgov.com/j/1619504895?pwd=N0V1N3JFRnJ0TEVoSDNrTGRzakF3UT09
ID: 161 950 4895
Password: 812674

Courtroom Clerk's Session

1. 8:31 AM CASE NUMBER: C25-01776
CASE NAME: JOHN DOE VS. ETHAN BUCKLEY
HEARING ON DEMURRER TO: COMPLAINT CONT'D FROM 2/11/2026
FILED BY:
TENTATIVE RULING:

Defendant Ethan Buckley's demurrer to the complaint is ruled on as follows.

The demurrer is **sustained** with leave to amend as to the second cause of action for public disclosure of private facts, the fifth cause of action for harassment, and the sixth cause of action for tortious interference. The demurrer is **overruled** as to the first cause of action for defamation, the third cause of action for false light, the fourth cause of action for intentional infliction of emotional distress, and the seventh cause of action for doxing.
Plaintiff shall have 15 days from the date of this order to file and serve an amended complaint.

Background

Plaintiff and Buckley were close friends in high school and into college but had a falling out in July 2023. During their friendship, they regularly communicated via Snapchat, a mobile messaging platform on which content typically disappears after being viewed. (Complaint ¶¶ 8, 9.)

In December 2021, during Plaintiff's freshman year of college at Chapman University, Buckley sent Plaintiff a Snapchat video while Buckley was partying with friends at the University of Portland. Plaintiff sent a reply video that referred to Buckley and his friends as his “niggers.” Plaintiff alleges that Buckley had used the same slur in his initial message to Plaintiff’s and his reply mirrored Buckley's language and tone. The complaint further alleges that both parties were intoxicated at the time, and the exchange was intended as a private joke between close friends. Plaintiff alleges he expected the video to disappear automatically after Buckley viewed it, consistent with Snapchat's standard function, and he never intended anyone else to see it. (*Id.* ¶¶ 10-13.)

During the summer of 2023, the friendship between Plaintiff and Buckley deteriorated and they had a falling out in July of 2023. (*Id*. ¶ 14)

On or about July 17, 2023, Plaintiff received a Snapchat notification that Buckley had saved two items from Snapchat to his phone's camera roll. Plaintiff did not know at that time what Buckley had downloaded. (*Id*. ¶ 15)

On or about July 18, 2023, following their falling out, Buckley sent Plaintiff a threatening message accusing Plaintiff of turning mutual friends against him. After Plaintiff denied the accusations, Buckley sent a follow-up message that included a copy of the December 2021 Snapchat video. Plaintiff interpreted this as a blackmail threat. (*Id.*, ¶ 16)

On or about August 11, 2023, Buckley contacted Plaintiff seeking to reconcile. Plaintiff confronted Buckley about the threat, and Buckley said he would never publish the Snapchat video. (*Id*. ¶ 17.)

Approximately a year later, on August 27, 2024, Buckley emailed the Snapchat video to three Chapman University administrators: its Dean of Students, Executive Vice President/Chief Advancement Officer, and Senior Vice President of University Advancement. The email, attached to the complaint as Exhibit A, states:

> There is a video (attached) of one of your students going around that I thought you all should be aware of. The student involved is [Plaintiff], class of 2025. He is seen and heard, while wearing a Chapman shirt, using the racial slur (n-word), and stating that he is faded, meaning he is high on marijuana or some other type of drug. This is completely unacceptable for any of your students and he should be held fully accountable and be disciplined for this violation of your Student Conduct policies. I believe this student does not even deserve to be educated at this institution, being that he is known to display this behavior on repeat.

On or about August 29, 2024, Plaintiff contacted Buckley's mother to seek a resolution, given that the parties had not spoken in over a year. On or about September 6, 2024, Buckley's mother reported that she had spoken with Buckley and that Buckley had promised to delete all copies of the video. (*Id*. ¶¶

21-22.)

In February 2025, the University received two anonymous complaints submitted through its EthicsPoint online reporting system. Case No. 157, filed February 25, 2025, states under Case Details: “Student is saying a racial slur” and "Student posts hard “r” slur on social media frequently, making students of color including myself feel uncomfortable and unsafe."

Case No.158, filed February 27, 2025, states under What is the general nature of this matter: "[Plaintiff] says the n-word and other profane language using hard ‘r’ making students feel unsafe and disrespected. Was wearing Chapman merchandise, representing the school with this horrible language." Under Where did this incident occur: "Captured on video posted online." Under Please provide the specific or approximate time this incident occurred: "Recurring." Under How long do you think this problem has been going on: "3 months to a year." Under Case Details: "Graduating spring 2025, continuously using profane language and disrespecting the student body. He should not be able to graduate and represent Chapman."

On March 11, 2025, Buckley sent an apology letter to the University in which he admitted that he had forwarded the video to the University, acknowledged that he did so because he felt hurt following the parties’ falling out, characterized both parties as young people who had made mistakes, expressed regret for his decision, stated that he had since deleted all copies of the video in his possession, and that he would not attempt to harm Plaintiff in the future. The letter is attached to the complaint as Exhibit C.

In mid to late March of 2025, Plaintiff learned that a friend had received a copy of the Snapchat video, forwarded to her by a third party unknown to Plaintiff. Plaintiff alleges on information and belief that the video was distributed anonymously via a “burner” Instagram account to a Black student at Chapman, who then forwarded it to the third party. Plaintiff alleges, also on information ad belief, that the video was sent to multiple Chapman students, though Plaintiff does not know the total number of recipients or their identities. (*Id*. ¶¶ 25-27.)

Plaintiff asserts seven causes of action against Buckley based on these facts: (1) defamation; (2) public disclosure of private facts; (3) false light; (4) intentional infliction of emotional distress (IIED); (5) harassment; (6) tortious interference based on Buckley's disruption of Plaintiff's contractual relationship with the University; and (7) “doxing” under Civil Code section 1708.89. Plaintiff seeks non-economic compensatory damages, economic damages, statutory damages of $30,000 under Civil Code section 1708.89(c), punitive damages, a preliminary and permanent injunction prohibiting further distribution of the video, and attorney fees and costs.

Legal Standard on Demurrer

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (*Lewis v. Safeway, Inc*. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts "[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*290 Division (EAT), LLC v. City & County of San Francisco* (2022) 86 Cal.App.5th 439, 450 [cleaned up].)
Further, in ruling on a demurrer, a court must "liberally construe" the allegations of the complaint

"with a view to substantial justice between the parties." (See Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (*Perez v. Golden Empire Transit Dist*. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, "[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged." (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

Analysis

Defendant demurs to all seven causes of action alleged in the complaint. Both parties address the causes of action beginning with the seventh cause of action for doxing and ending with the first cause of action for defamation. Notwithstanding, the Court addresses the causes of action in the order alleged in the complaint.

(1) First Cause of Action for Defamation

The First Cause of Action is for defamation. The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage. (*John Doe 2 v. Superior Court* (2016) 1 Cal.App.5th 1300, 1312.)

The defamation cause of action rests on paragraphs 29 through 37 of the complaint. Paragraph 29 alleges that Defendant forwarded the Snapchat video via email to the University and falsely accused Plaintiff of regularly using racial slurs and posting racist content on social media. Paragraph 30 alleges on information and belief that Defendant also disseminated the video anonymously to others by electronic communications including email, text message, and direct messaging on social media. Paragraphs 31 through 37 allege that Defendant's written statements and publications were defamatory, unprivileged, intentional, malicious, and caused harm to Plaintiff's reputation, academic standing, and standing in the community.

Defendant argues the claim fails because Exhibit A contains no accusation that Plaintiff regularly uses racial slurs or posts racist content on social media, that Buckley's statements in the email are opinion rather than actionable statements of fact, that forwarding the video cannot be defamatory because the video is true, and that the email caused no natural tendency to injure because Chapman investigated and took no action.

The Court agrees that the Snapchat video itself cannot form the basis of a defamation claim. The video depicts Plaintiff's own conduct and is not false. A true recording of actual events cannot satisfy the falsity element regardless of how damaging its contents may be. The issue is whether Buckley's accompanying written statements constitute a separate actionable publication. Buckley's August 27 2024 email states in relevant part: "There is a video (attached) of one of your students going around that I thought you all should be aware of. The student involved … is seen and heard, while wearing a Chapman shirt, using the racial slur (n-word) …. I believe this student does not even deserve to be educated at this institution, being that he is known to display this behavior on repeat.”

Most of the statements in Exhibit A are either true (the video shows what it shows) or opinion (Buckley’s statement that Plaintiff's conduct was unacceptable and he should be expelled). However the last clause, that Plaintiff "is known to display this behavior on repeat," is different. That statement asserts as fact that Plaintiff habitually engages in racist behavior or uses racial slurs beyond the incident depicted in the video. That is a provable assertion of fact, and if false, it has a natural tendency to expose Plaintiff to hatred, contempt, and ridicule sufficient to satisfy the injury element regardless of what action the University took against him.

Defendant's argument that the demurrer cause of action fails because Chapman took no adverse action is unavailing. When a plaintiff prevails on a claim of defamation per se, the plaintiff need not prove actual damages because damages are presumed. (*Tilkey v. Allstate Insurance Company* (2020) 56 Cal.App.5th 521, 542; *Finney v. Lockhart* (1950) 35 Cal.2d 161, 163.) The statement in Exhibit A that Plaintiff “is known to display this behavior on repeat” constitutes defamation per se because the meaning is sufficiently clear from the face of the statement. (*Tilkey*, *supra*, 56 Cal.App.5th at 542.)

The same analysis would apply to the anonymous EthicsPoint complaints, though it is not entirely clear from the complaint that Plaintiff is attributing those complaints to Defendant. The complaints, filed anonymously through the University's confidential reporting system in February 2025, assert that Plaintiff habitually uses racial slurs on social media and on campus, statements that, like the "on repeat" characterization in Exhibit A, go beyond the single incident depicted in the video and assert a pattern of racist conduct as fact. Should Plaintiff establish that those complaints are also attributable to Defendant, they would constitute additional defamatory publications supporting the defamation cause of action, and damages would likewise be presumed.

For these reasons, the demurrer to the first cause of action is **overruled**.

(2) Second Cause of Action for Public Disclosure of Private Facts

In the second cause of action, Plaintiff asserts a claim for public disclosure of private facts against Buckley based on his alleged disclosure of the Snapchat video to University administrators and fellow students.

A cause of action for public disclosure of a private fact requires Plaintiff to prove that Defendant publicly disclosed a private fact, that such fact would be offensive and objectionable to a person of reasonable sensibilities, that such fact is not of legitimate public concern, and that such disclosure was a substantial factor in causing the Plaintiffs’ harm. (*Moreno v. Hartford Sentinel, Inc.* (2009) 172 Cal.App.4th 1125, 1129-1130.)

Defendant argues that the second cause of action fails because Plaintiff has not alleged a sufficiently public disclosure, contending that under California law public disclosure requires wide publication to “tens of thousands” of individuals, rather than disclosure confined to a limited audience, and that forwarding the video to a small number of University administrators through a confidential reporting platform and a few students does not meet that threshold. (Dem. 8:1-7.)

Plaintiff responds Second Cause of Action for public disclosure of private facts is sufficiently pleaded because the video was originally shared confidentially between friends establishing its private nature, the forwarding of the video to University administrators and other students satisfies the publicity requirement under *Kinsey v. Macur* (1980) 107 Cal.App.3d 265, the content of the video would be offensive and objectionable to a reasonable person, and the private communication between friends lacks any legitimate public concern.

The demurrer is sustained because the Court agrees that Plaintiff has not alleged a sufficiently public disclosure.

Under California law, the public disclosure tort requires that the disclosure be "widely published and not confined to a few persons or limited circumstances." (*Hill v. National Collegiate Athletic Ass'n* (1994) 7 Cal.4th 1, 27.) The tort must be "accompanied by publicity in the sense of communication to the public in general or to a large number of persons as distinguished from one individual or a few." (Porten v. University of San Francisco (1976) 64 Cal.App.3d 825, 828.) It is "no invasion to communicate that fact even to a small group." (*Timperley v. Chase Collection Cases* (1969) 272 Cal.App.2d 697, 700.)

Plaintiff relies on *Kinsey v. Macur, supra,* to argue that forwarding of the video to University administrators and students satisfies the publicity requirement. The defendant in that case embarked on a deliberate campaign to reach as many people as possible who knew the plaintiff, sending letters containing false and damaging accusations across multiple states to a diverse and entirely unconnected group of recipients including former spouses, parents, neighbors, university faculty, and the university president. (Id. at 268-270.) The court found that this constituted mass exposure precisely because the defendant's stated purpose was to tell the whole world about the plaintiff and her recipients had nothing in common except their acquaintance with him. (Id. at 272-273.)

Here, the complaint does not allege facts to show that the Snapchat video was disclosed widely or publicly. The complaint alleges that Defendant forwarded the video to three University administrators by email. The complaint also references two anonymous EthicsPoint complaints to the University's confidential reporting platform, though it is not clear from the pleading whether Plaintiff claims that Defendant submitted those complaints or whether it was third parties. Further, on information and belief, Plaintiff alleges the video was sent to an unknown number of students but does not allege facts establishing the scope or breadth of that distribution. As it stands, disclosure to a small number of University administrators and an unknown number of individuals is not the widespread publication to the public generally that the tort requires. The Court recognizes the content distributed via Instagram or other social media platforms has the potential to spread far beyond its initial recipients, and it is conceivable that on amendment Plaintiff could allege facts establishing the kind of widespread public exposure the tort requires. The complaint does not presently allege facts sufficient to show that the video reached a sufficiently broad audience.

Further, a plaintiff may allege on information and belief any matters not within his personal knowledge if he has information leading him to believe the allegations are true. (P*ridonoff v. Balokovich* (1951) 36 Cal.2d 788, 792.) However, proper allegation of facts based on information and belief requires the party to further allege the information that leads him to believe the allegations are true. (*Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-59.) That did not happen here.

Paragraph 39 alleges on information and belief that Buckley disseminated the video to others by way of electronic communications including email, text message, and direct messaging on social media. The complaint does not allege any facts identifying the basis for that belief. The complaint alleges in paragraphs 25 through 27 that Plaintiff learned through a chain of intermediaries that the video had been distributed anonymously from a burner Instagram account to students at the University. Those paragraphs do not allege that Buckley operated the burner account, and do not explain what the discussions with the unknown Third Party revealed that would lead Plaintiff to attribute the distribution to Buckley. On amendment Plaintiff must allege the specific facts, if any, that lead him to believe Defendant was responsible for the broader dissemination alleged in the complaint.

The demurrer to the second cause of action is **sustained** with leave to amend.

(3) Third Cause of Action for False Light

The third cause of action alleges false light invasion of privacy. Defendant argues the claim fails for the same reasons as the defamation claim, citing *Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1264-65, for the proposition that a false light claim coupled with a defamation claim stands or falls on whether it meets the same requirements as the defamation cause of action.

As the Court has overruled the demurrer to the first cause of action for defamation for the reasons stated above, the demurrer to the third cause of action for false light is likewise **overruled**.

(4) Fourth Cause of Action for IIED

The elements of a cause of action IIED are (1) extreme and outrageous conduct by the defendant; (2) intent to cause, or reckless disregard of the probability of causing, emotional distress; (3) severe or extreme emotional distress suffered by the plaintiff; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050; *Christensen v. Superior Court (*1991) 54 Cal.3d 868, 903.) "Outrageous conduct" is so extreme as to exceed all bounds tolerated in a civilized community. (*Fletcher v. Western National Life Ins. Co.* (1970) 10 Cal.App.3d 376, 397.)

Plaintiff alleges Defendant's conduct includes the following: downloading and retaining a private Snapchat video that Plaintiff reasonably expected to be deleted after viewing, threatening to distribute the video during a confrontation in July 2023, promising Plaintiff in August 2023 that he would never publish the video, forwarding the video to three Chapman University administrators in August 2024 accompanied by written accusations that Plaintiff's conduct was unacceptable, that it violated Student Conduct policies, and that Plaintiff did not deserve to remain enrolled at the University, and continuing to distribute the video after his mother confirmed in September 2024 that he had promised to delete all copies. The complaint alleges that the video was originally exchanged in the context of a private social communication in which Defendant himself used the same language in his initial message to Plaintiff, a fact that was left out of Defendant's communications to the University and others. Plaintiff alleges that as a direct result of this conduct he suffered humiliation, severe emotional distress, damage to his reputation and academic standing, fear for his personal safety, and was subjected to a disciplinary investigation.

Taken together and accepting the allegations as true for purposes of demurrer, Plaintiff has alleged minimally sufficient facts to support the elements of an IIED claim. Discovery will reveal if the allegations are true, but at this stage the Court must treat them as such.

(5) Fifth Cause of Action for Harassment

Defendant argues that the fifth cause of action for harassment fails because the conduct alleged does not meet the definition of harassment under Code of Civil Procedure section 527.6, which requires either unlawful violence, a credible threat of violence, or a knowing and willful course of conduct that would cause a reasonable person to suffer substantial emotional distress. Defendant contends that forwarding the video to the University and unknown students does not constitute actionable harassment, and fear of future confrontation by offended third parties or organized campus activism is too speculative to qualify.

Plaintiff responds that the repeated forwarding of the video to multiple recipients at the University, combined with accusations of racism and attempts to have Plaintiff expelled, constitutes a pattern of severe and pervasive conduct that goes beyond a single incident and amounts to a coordinated effort to damage Plaintiff's reputation and educational standing sufficient to state a claim for harassment.

Under California Civil Procedure section 527.6(b) "harassment" is defined as unlawful violence, a credible threat of violence, or a knowing and willful course of conduct directed at a specific person (1) that seriously alarms, annoys, or harasses the person, and (2) that serves no legitimate purpose. The course of conduct must be such as would cause a reasonable person to suffer substantial emotional distress and must actually cause substantial emotional distress to the plaintiff.

The parties invoke the definition of harassment in CCP section 527.6, the statute provides a procedure that allows a party to petition for injunctive relief when he or she suffers harassment as define in the statute. Thus, a court may issue a temporary restraining order pending a hearing on the merits, at which time the court may issue a permanent injunction lasting up to three years. (Code. Civ. Proc. § 527.6(j).) The court orders may also contain "stay away orders" and the like. (Id., § 527.6(c) and (d).)

Here, it is not clear to the Court that a common-law cause of action for harassment exists under California law. (See, e.g., *Myers v. Trendwest Resorts, Inc*. (2007) 148 Cal.App.4th 1403, 1426 ["There is no common law cause of action for sexual harassment, but conduct constituting sexual harassment may be alleged in common law claims such as battery and intentional infliction of emotional distress."]; *Medix Ambulance Service, Inc. v. Superior Court* (2002) 97 Cal.App.4th 109, 118-119 [same].)

Because it does not appear that a common law cause of action for harassment exists under California law, the Court finds that Plaintiff fails to state a cause of action. The demurrer to the fifth cause of action is **sustained** with leave to amend. Plaintiff should reassert this cause of action on amendment only if he can identify a cognizable legal basis for a standalone common law harassment claim.

(6) Sixth Cause of Action for Interference with Contract

The elements of a cause of action for intentional interference with contractual relations are "(1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (*Reeves v. Hanlon* (2004) 33 Cal.4th 1140, 1148.)

The demurrer to the sixth cause of action is **sustained** because, while Plaintiff alleges Defendant's conduct disrupted his contractual relationship with the University, he does not plead any actual breach or disruption of that relationship. That Plaintiff may have been required to participate in an investigation is not sufficient to show a disrupted contractual relationship, particularly where the University affirmatively assured Plaintiff that he was under no scrutiny and took no adverse action.

(7) Seventh Cause of Action for Doxing under Civil Code section 1708.89

Civil Code section 1708.89 creates a private right of action against a person who "doxes" another person, defined as "an act when a person, with intent to place another person in reasonable fear for their safety . . . by means of an electronic communication device, and without consent of the other person, and for the purpose of imminently causing that other person unwanted physical contact, injury, or harassment, by a third party, electronically distributes, publishes, emails, hyperlinks, or makes available for downloading, personal identifying information, including, but not limited to, a digital image of another person, or an electronic message of a harassing nature about another person, which would be likely to incite or produce that unlawful action."

Plaintiff alleges the following in support of the seventh cause of action:

> 86. Plaintiff alleges that Defendant intentionally disclosed Plaintiff s personal identifying information (“PII”), including but not limited to his full legal name, the private Snapchat Video, and the name and location of the college where Plaintiff attends, multiple times from July 17, 2023 to the present.
>
> 87. The disclosure of Plaintiffs PII was made by email, text and/or direct messaging on social media.
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> 88. The disclosure of Plaintiffs PII was also made through EthicsPoint, a confidential, online and telephone-based system for reporting misconduct or violations of university policies for the University.
>
> 89. Defendant made the disclosure with the intent to cause, or with reckless disregard of the risk of causing, harassment, harm, or significant emotional distress to Plaintiff.
>
> 90. As a direct and proximate result of Defendant's disclosure, Plaintiff experienced substantial emotional distress, fear for personal safety, reputational harm, academic discipline, investigation, and embarrassment.
>
> 91. Plaintiff did not consent to the disclosure of his PII, and such disclosure served no legitimate public interest or legal purpose.

> 92. Defendant's conduct constitutes a violation of California Civil Code section 1708.89, which prohibits the intentional distribution of personal identifying information with the intent to incite or threaten physical harm or harassment, or with knowledge that the information will be used to commit such acts.

(FAC ¶¶ 86-92.)

Defendant argues the doxing claim fails because sending the video to university administrators through a confidential reporting channel does not constitute doxing. As to the disclosure to the university, the Court agrees. That disclosure does not satisfy the statutory requirements of intent to place Plaintiff in reasonable fear for his physical safety or purpose of imminently causing unwanted physical contact, injury, or harassment by a third party.

As for dissemination to the student body, Defendant argues the allegation is fatally uncertain, that Plaintiff's name and university affiliation are not private information because he was wearing a Chapman sweatshirt, that there is no allegation that Defendant forwarded the video to unknown students with intent to place Plaintiff in fear for his safety, that there is no allegation that Plaintiff was actually harassed by others, and that the EthicsPoint complaints filed by unknown students do not constitute unlawful action.

Unlike disclosure to university administrators, distribution of a video depicting Plaintiff using a racial slur to fellow students raises a reasonable inference that the disclosure was made for the purpose of causing Plaintiff unwanted harassment by a third party. Whether that distribution was likely to incite unlawful action is a factual question that cannot be resolved on demurrer.

The allegations supporting the seventh cause of action are minimally sufficient to state a cause of action arising under the anti-doxing statute. The demurrer to this cause of action is therefore **overruled**.

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2. 9:00 AM CASE NUMBER: C23-01442
CASE NAME: SIOBHAN DUFALL VS. ROLANDO GUTIERREZ
***FURTHER CASE MANAGEMENT CONFERENCE CONT'D FROM 2/24 TO TRAIL MOTION RE: RECONSIDERATION OF AN ORDER ADOPTING THE 11/19/25 TENTATIVE RULING GRANTING ARCH INSURANCE COMPANY'S MOTION FOR LEAVE TO FILE A COMPLAINT IN INTERVENTION**
FILED BY:
TENTATIVE RULING:*
This Case Management Conference (CMC) trails the hearing on Line 11. This CMC is continued to May 6, 2026 at 9:00 a.m. No appearance is required on March 25, 2026.

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3. 9:00 AM CASE NUMBER: C24-03465
CASE NAME: LOURDES DE LA MORA VS. JUAN GALLEGOS
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:*
This Case Management Conference (CMC) trails the hearing for Line 17, below. If Line 17 is unopposed, then this CMC will be continued to September 22, 2026 at 8:30 a.m.

4. 9:00 AM CASE NUMBER: C22-01790
CASE NAME: KATHERINE STAUDT VS. DOES 1 TO 50
***FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL HEARING ON MOTION FOR DISCOVERY (TERMINATING SANCTIONS AGAINST PLAINTIFF)**
FILED BY:
****TENTATIVE RULING:****

This Case Management Conference (CMC) trails the hearing for Line 26. If Line 26 is unopposed, then this CMC will be continued to September 22, 2026 at 8:30 a.m.

5. 9:00 AM CASE NUMBER: C24-02203
CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY
***FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL HEARING ON DEMURRER 2ND AMENDED COMPLAINT**
FILED BY:
****TENTATIVE RULING:****

This Case Management Conference (CMC) trails the hearing for Line 16. Line 16 is vacated. This CMC is **vacated**. No appearance is required on March 25, 2026.

6. 9:00 AM CASE NUMBER: C23-02791
CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY DEFENSE COUNSEL YULI KAPLUNOVSKY SHOULD NOT BE HELD IN CONTEMPT FOR FAILURE TO APPEAR AT THE 8/5/25 FURTHER CASE MANAGEMENT CONFERENCE AND TRIAL SETTING CONFERENCE (CONTINUED FROM 12/16/25)
FILED BY:
****TENTATIVE RULING:****

This case is also scheduled for hearings in Lines 8, 12, and 13. The Court scheduled an Order to Show cause as to why Defendant JRT Freight LLC and Luis Martinez's counsel, Eliahu Kaplunovsky, should not be held in contempt for failing to appear at the CMC on August 5, 2025 and the Trial Setting Conference on December 16, 2025. The Court notes that Counsel Kaplunovsky had filed a Motion to be relieved as counsel on December 2, 2025. The Court **discharges** this Order to Show Cause.

7. 9:00 AM CASE NUMBER: N25-2112
CASE NAME: AMAN POHYAR VS. IBRAHIM SHARIFF
***EX PARTE PLAINTIFF'S EX PARTE APPLICATION FOR ORDER SHORTENED TIME DUE TO; DEFT AT ALL TIME NEVER PAID THE PROPERTY TAXES FOR FIVE YEARS**
FILED BY: POHYAR, AMAN
****TENTATIVE RULING:****

This tentative ruling applies to Lines 7 and 23. Plaintiff Aman Pohayr's ("Plaintiff") Motion to Set Hearing for an Unlawful Detainer Action is **denied** without prejudice. Plaintiff's *ex parte* application to set a hearing to require Defendant to pay property taxes is **denied** without prejudice.

Defendant Ibrahim Shariff has not made an appearance in this case, and has filed a Notice of Bankruptcy on December 4, 2025. The Notice of Bankruptcy operates to stay these proceedings, pending discharge. This matter is **stayed** pending discharge of Defendant Ibrahim Shariff's bankruptcy case. The Court has already set a Bankruptcy Review Hearing for September 4, 2026. Absent any other intervening hearings, the Parties are ordered to file a case management conference statement at least five (5) days before the CMC to apprise the Court of the status of Defendant's bankruptcy case.

8. 9:00 AM CASE NUMBER: C23-02791
CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC
***FURTHER CASE MANAGEMENT CONFERENCE CONTINUED FROM 12/16/25**
FILED BY:
****TENTATIVE RULING:****
This Case Management Conference (CMC) trails the hearing on Lines 12 and 13. Counsel are ordered to appear for the CMC.

Law & Motion

9. 9:00 AM CASE NUMBER: C22-00737
CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER
***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16(C)(1)**
FILED BY: MILLER, RAYMOND R.
****TENTATIVE RULING:****
Summary

Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal is **continued** to April 15, 2026 at 9:00 a.m.

Defendant is ordered to file a Proof of Service evidencing that this Motion was served on Plaintiffs at least five (5) court days before the hearing evidence proper and timely service of this motion pursuant to Cal. Code of Civ. Proc §1005(b). Defendant's Counsel shall also file a declaration explaining whether service was accomplished timely on Plaintiffs' counsel

Background

Plaintiffs voluntarily dismissed their complaint after Miller filed a special motion to strike pursuant to the anti-SLAPP motion. Following dismissal, Miller moved for attorney's fees and costs pursuant to the same statute. This Court granted that motion, awarding $13,555 in attorney's fees and costs to Miller. Plaintiffs appealed.

On January 23, 2026, the Court of Appeal affirmed this court's order, and remitted this case back to the trial court. The Court of Appeal ordered that Miller may recover his costs on appeal pursuant to Rule 8.278(a)(1).

On November 18, 2025, Miller filed this Motion for attorney's fees and costs incurred on appeal pursuant to Cal. Code of Civ. Proc. § 425.15(c)(1), seeking $30,000 in attorney's fees and $1,022 in costs, based on 60 hours of work, billed at a rate of $500.00 per hour. The Motion was supported by Notice, Memorandum of Points and Authorities and the Declaration of James O'Gallagher. However, the Court's register of actions does not show that Miller filed a proof of service evidencing service of this Motion to Plaintiffs.

Ruling

This Motion is continued to April 15, 2026 at 9:00 a.m. Miller's counsel is ordered to file a proof of service, and a declaration explaining whether service was accomplished timely on Plaintiffs' counsel.

10. 9:00 AM CASE NUMBER: C22-01971
CASE NAME: CONSTANTINA MARQUEZ VS. KOHL'S DEPARTMENT STORES, INC.
***HEARING ON MOTION IN RE: FOR A *NUNC PRO TUNC* ORDER FOR LEAVE TO FILE X-COMPLAINT (SET PER COURT ORDER FILED 12/2/2025)**
FILED BY:
****TENTATIVE RULING:****

Before the Court is Defendants Kohl's Department Stores, Inc., Lauren Crader's Application for a *Nunc Pro Tunc* Order for Leave to File Cross-Complaint.

Procedural Background

This matter pertains to an alleged slip and fall that occurred on September 18, 2020, at a Kohl's store located in Brentwood, California. Plaintiff filed her complaint on September 16, 2022. Defendants filed their answer on February 21, 2023.

On December 3, 2024, the Court scheduled the jury trial on the matter to begin on July 28, 2025. On June 9, 2025, the Court granted the Parties' joint stipulation to continue the trial date to March 16, 2026. On September 17, 2025, Defendants filed a substitution of attorney form indicating that they had changed counsel.

On October 29, 2025, new/current counsel for Defendants filed a Cross-Complaint against Kellermeyer Bergensons Services LLC ("KBS") for indemnity and contribution. The Cross-Complaint was accepted and filed by the Court.

Thereafter, on November 25, 2025, Defendants' counsel filed an *ex parte* application seeking a *nunc pro tunc* order for leave to file the cross-complaint which was already filed and accepted by the Court. The Court denied the *ex parte* application, instead setting the motion for a regularly scheduled hearing. The hearing was set for March 25, 2026. On January 30, 2026, the Court vacated the trial date, setting a trial setting conference for June 29, 2026. The order noted that the Parties were scheduled for mediation on May 1, 2026.

Legal Standard

The issue appears to relate to Defendants' failure to obtain leave to file the Cross-Complaint. When, as here, a defendant files a cross-complaint against someone other than plaintiff it is to be filed "before the court has set a date for trial." (Code Civ. Proc. § 428.50 (a)-(b).) If that party seeks to file a cross-complaint after a trial date has been set, that party "shall obtain leave of court…." (*Id.* at (c).) "Leave may be granted in the interest of justice at any time during the course of the action." (*Ibid.*)

Analysis

Initially, the Court notes that the Cross-Complaint was accepted by the Court and filed on October 29, 2025. As such, it is unclear why Defendants filed this motion to obtain permission to file a pleading which has already been accepted and filed. It appears that a motion to strike by the party objecting to the filing of the cross-complaint would be the appropriate action.

As to the request for a *nunc pro tunc* order, a "court can always correct a clerical, as distinguished from a judicial error which appears on the face of a decree by a *nunc pro tunc* order." (*Estate of Eckstrom* (1960) 54 Cal.2d 540, 544.) "'The function of a *nunc pro tunc* order is merely to correct the record of the judgment and not to alter the judgment actually rendered -- not to make an order now for then, but to enter now for then an order previously made. The question presented to the court on a hearing of a motion for a *nunc pro tunc* order is: What order was in fact made at the time by the trial judge?'" (*Ibid.* quoting *Smith v. Smith* (1952) 115 Cal.App.2d 92, 99.)

Here, there is no order that Defendant can point to that the Court can correct.

Cross-Defendant KBS argues in its opposition that the "court should act *nunc pro tunc* to correct this erroneous filing and forthwith strike Kohl's cross-complaint." (Opp. at 3:16-17.) Again, there is no prior order to which either party can point that the Court can 'correct' or modify. In addition, the Court notes that any request for affirmative relief made in an opposition is improper and will not be considered by the Court. "An application for an order is a motion." (Code Civ. Proc. § 1003.) Motions must follow the filing and service requirements set forth in the Code. (See e.g. Code Civ. Proc. § 1005, 1010.) To the extent KBS believes the Cross-Complaint should be stricken, it is required to file a motion seeking such relief.

The Court will note that leave to file a cross-complaint is very liberally granted. In accordance with Code of Civil Procedure § 428.10(b), a party may file a cross-complaint asserting any cause of action "arising out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him." As the California Supreme Court explained, under the governing provisions of that statute, "a named defendant is authorized to file a cross-complaint against any person, whether already a party to the action or not, from whom the named defendant seeks to obtain total or partial indemnity. Although the trial court retains authority to postpone the trial of the indemnity question if it believes such action is appropriate to avoid unduly complicating the plaintiff's suit, *the court may not preclude the filing of such a cross-complaint altogether.*" (*Paragon Real Estate Group of San Francisco, Inc. v. Hansen* (2009) 178 Cal.App.4th 177, 183 quoting *American Motorcycle Assn. v. Superior Court* (1978) 20 Cal.3d 578, 584.)

In interpreting Code of Civil Procedure section 426.50, which pertains to applications for leave to file a cross-complaint, the First District Court of Appeal has held that a "motion to file a cross-complaint at any time during the course of the action ***must be granted*** unless bad faith of the moving party is demonstrated" and that factors "such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith." (*Silver Orgs. v. Frank* (1990) 217 Cal.App.3d 94, 99.)

"'Bad faith' is defined as '[t]he opposite of good faith,' generally implying or involving actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by honest mistake …, but by some interested or sinister motive[,] … not simply bad judgment or negligence, but rather … the conscious doing of a wrong because of dishonest purpose or moral obliquity; … it contemplates a state of mind affirmatively operating with furtive design or ill will.'" (*Silver Orgs.* 217 Cal.App.3d at 99 quoting *Pugh v. See's Candies, Inc.* (1988) 203 Cal.App.3d 743, 764.) Section 426.50 "expressly disallows" denial of a motion on a mere showing of neglect, inadvertence, or oversight. (*Id.* at 101.)

"The principle is well settled in this state that a defendant may cross-complaint for a declaration of the duty of a cross-defendant to indemnify a cross-complainant in the event the latter is held liable to the plaintiff in the main action." (*Brokate v. Hehr Mfg. Co.* (1966) 243 Cal.App.2d 133, 137-38.) Bringing an action for indemnity or contribution by cross-complaint promotes judicial efficiency and allows related evidence and matters of proof to be consolidated in a single proceeding. (*Valley Circle Estates v. VTN Consolidated, Inc.* (1983) 33 Cal.3d 604, 614-15.) As the California Supreme Court noted, "[overburdened] courts gain nothing from a rule which would discourage the filing of cross-actions in favor of independent actions.'" (*Id.* at 615 quoting *Shepard & Morgan v. Lee & Daniel, Inc.* (1982) 31 Cal.3d 256, 261.) The Court has "consistently concluded that the cross-action procedure represents a 'more orderly and expeditious resolution of the controversy' in multiple party cases." (*Ibid.*)

Conclusion

Defendants' motion for a nunc pro tunc order is **denied** as moot. There is no order to 'correct.' The Cross-Complaint has already been accepted and filed.

11. 9:00 AM CASE NUMBER: C23-01442
CASE NAME: SIOBHAN DUFALL VS. ROLANDO GUTIERREZ
***HEARING ON MOTION IN RE: RECONSIDERATION OF AN ORDER ADOPTING THE 11/19/25 TENTATIVE RULING GRANTING ARCH INSURANCE COMPANY'S MOTION FOR LEAVE TO FILE A COMPLAINT IN INTERVENTION**
FILED BY: DUFALL, SIOBHAN
****TENTATIVE RULING:****

Continued by the Court to May 6, 2026 at 9:00 a.m. No appearance is required on March 25, 2026.

12. 9:00 AM CASE NUMBER: C23-02791
CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ELIYAHU Y KAPLUNOVSKY**
FILED BY: JRT FREIGHT, LLC
****TENTATIVE RULING:****
Summary

This tentative ruling applies to Lines 12 and 13. Counsel Eliyahu Y. Kaplunovsky, who represents Defendants JRT Freight LLC and Luis Martinez ("Defendants"), filed a Motion to Be Relieved as Counsel for both Defendants. The Motion is **granted** as set forth herein.

Background

This is an employment and wrongful termination case whereby Plaintiff Jose Antonio Gonzales Marquez ("Plaintiff") alleges that his employers, Defendants, subjected him to discrimination during his employment and retaliated against based on his race. Plaintiff also contends that Defendants denied him rest breaks, overtime pay and did not pay him all of this wages for time worked.

Counsel Eliyahu Y. Kaplunovsky filed this Motion to Be Relieved as Counsel on December 2, 2026, supported by his declaration claiming that "JRT Trucking, LLC and its managing members have refused to cooperate with Mr. Kaplunovsky [ ] and has severely affected Attorney's ability to adequately represent JRT." Further, Counsel claims that "Defendants have breached their retainer agreement with the firm and refuse to pay for the services completed; Mr. Kaplunovsky and the firm have conveyed to Defendants that these breaches in multiple conversations, and offered solutions. However, the Defendants have failed to uphold their obligations to pay for the firm's services."

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Plaintiff's Counsel. The Court acknowledges that the prejudice to the Parties is minimal, as there is ample time for Defendant to retain trial counsel. Furthermore, there is no trial date set in this case.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the two Proposed Orders Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on December 2, 2025. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of the Order (MC-053) to Defendants by mail at their last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).

13. 9:00 AM CASE NUMBER: C23-02791
CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ELIYAHU Y KAPLUNOVSKY**
FILED BY: MARTINEZ, LUIS
TENTATIVE RULING:

See Tentative Ruling, Line 12, above.

14. 9:00 AM CASE NUMBER: C24-00733
CASE NAME: HAMDY FAYAD VS. GAMAL AMIN
***HEARING ON MOTION IN RE: AMEND COMPLAINT FOR COMPULSORY JOINDER OF DEFENDANTS**
FILED BY: FAYAD, HAMDY
TENTATIVE RULING:

Plaintiff Hamdy Fayad's motion to amend complaint is **granted as to Machine Learning and denied without prejudice as to Shahab Amin**. Plaintiff shall file and serve a second amended complaint by April 8, 2026.

In March 2024, Plaintiff filed this case. He alleges that a dispute arose between Plaintiff and Gamal Amin and Nafisa Shafy regarding the sale of a liquor store in San Francisco. Plaintiff obtained an arbitration award against Amin and Shafy for almost $300,000. Plaintiff alleges that Amin and Shafy fraudulently transferred their assets to Shehab Amin (their son). Silverman, LLC is alleged to have owned the liquor store assets and was also involved in the fraudulent transfers. Plaintiff sued Gamal Amin, Nafisa Shafy, Shehab Amin and Silverman, LLC for fraudulent transfer and conveyance. In the original complaint, Plaintiff sued Shehab Amin as "Shehab Amin aka Shahab Amin". (FAC ¶4.)

Now, Plaintiff seeks permission to file a second amended complaint to add Shahab Amin as a separate defendant so that complaint will include both Shehab Amin and Shahab Amin. Plaintiff also seeks permission to add Machine Learning Incorporated as a defendant who is alleged to be an owner of Silverman, LLC. (Lin dec. ex. H (proposed SAC).)

Plaintiff brings this motion under Code of Civil Procedure section 389. Section 389(a) states that "[a] person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party." (Section 389(a); see also, *Bianka M. v. Superior Court* (2018) 5 Cal.5th 1004, 1018-19.)

Defendants in a fraudulent transfer case are sometimes necessary parties. Where a personal judgment is sought, not all parties must be included in a fraudulent conveyance cause of action. (*Diamond Heights Village Assn., Inc. v. Financial Freedom Senior Funding Corp.* (2011) 196 Cal.App.4th

290, 304.) However, where a cause of action seeks to void a transfer of property and thus, "void [a non-party's] interest in the property, [plaintiff] should have joined the deed beneficiary as a party. (Code Civ. Proc., § 379.) Transferees are necessary parties 'in an action to declare a transfer void as fraudulent.'" (*Ibid*.)

Plaintiff argues that Shahab and Machine Learning are indispensable parties. To the extent Plaintiff is seeking to set aside the deed of trust recorded on the Walnut Creek property, that document was recorded and shows Shehab as the beneficiary on the deed of trust. (Comp. ex. C; prayer for relief 1.) There is no showing that Shahab has an ownership interest in the deed of trust and thus, it is not clear why Shahab would be a necessary party if the Court sets aside or voids the deed of trust.

As to Machine Learning, Plaintiff seeks to set aside the conveyance to Machine Learning. (Comp. and FAC prayer for relief 2.) It is alleged that Defendants added Machine Learning as a member of Silverman, along with BOTH Shehab and Shahab. (Comp. ¶19; FAC ¶26.) The 2025 statement of information for Machine Learning shows Shehab and Shahab as officers in the company. (Lin dec. ex. D.) The Court finds that Machine Learning is necessary parties as to the request to set aside the conveyance as to Machine Learning. It is not clear that the members or members of a company must be named, as that is not normally done.

There is, however, another problem with adding Shabah as a defendant. It appears that both sides believe that Shehab and Shahab are the same person, but in an abundance of caution Plaintiff wants to add Shahab as a second person. Plaintiff argues that the incorporation documents for Machine Learning show two individuals, however, it is just as likely that they show one individual with two spellings of his name. Plaintiff has not provided any other evidence, such as discovery or deposition responses, addressing whether there are one or two individuals. The Court's concern here is that Plaintiff is seeking permission to add a new party, which Plaintiff and his lawyer do not believe is actually a real person. At this time, the Court is not convinced that Plaintiff and his lawyer have a reasonable belief that Shehab and Shahab are two different individuals. As to Shabah, the request for leave to amend is denied without prejudice.

Defendants argue that this motion should be denied based upon delay and because they will be prejudiced with added costs of preparation and increased discovery. There is significant delay here as Machine Learning could have been added to the original complaint. Still, the cases cited by Defendants on this issue involve leave to amend under Code of Civil Procedure section 473(b), which is not the standard applied here. Further, there is no showing of prejudice here.

Therefore, the Court **grants** Plaintiff's motion to add Machine Learning as a defendant, and **denies** the motion to add Shahab Admin as a separate defendant. The allegations regarding Machine Learning in the proposed SAC may be included when adding Machine Learning as a defendant.

15. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
HEARING ON SUMMARY MOTION DEPT 16 NOTE: MSJ PAPERWORK TO BE FILED ON 12/1
FILED BY:
TENTATIVE RULING:*

The hearing on the motion for summary adjudication shall be re-set to allow the Court to first consider the motions to seal. The new summary adjudication hearing date shall be April 22, 2026. No appearance is required on March 25, 2026.

Pursuant to California Rules of Court, Rule 2.551, when a party seeks to utilize information they do not view as privileged, but which the other side has designated as confidential, the party seeking to utilize the material, simultaneously with providing sealed envelopes to the Court, and publicly filing redacted copies, also files a Notice of Lodging which identifies the documents lodged, and typically indicates, as detailed in California Rules of Court, Rule 2.551, that all such records would be placed in the public court record unless the designating party files a timely motion or application to seal the records.

Here, defendant and the party moving for summary adjudication, CL La Fiesta Square CA LP (formerly known as SCC La Fiesta Square LP), substantially complied with that procedure (in the future, the caption on the Notice of Lodging should clearly indicate which documents are contained in the envelope– e.g., "John Doe Declaration in Support of Motion, Exhibit 3, unredacted").

In response, plaintiff has filed a motion to seal the subject records. Accordingly, there is a motion to seal scheduled for April 15, 2026 with respect to the information being relied upon for the present summary adjudication motion.

Plaintiff separately filed another motion to seal records associated with plaintiffs' opposition papers. A hearing on that motion is currently set for August 19, 2026.

However, this case is scheduled for a jury trial on June 8, 2026.

On the Court's own motion, **the August 19, 2026 motion to seal hearing is advanced to April 15, 2026** (the hearing date for the original motion to seal). Any opposition to both motions to seal shall be due by April 2, 2026, and any reply on April 8th. No appearance is required on March 25, 2026.

16. 9:00 AM CASE NUMBER: C24-02203
CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: ZAIN JEEWANJEE INSURANCE AGENCY
TENTATIVE RULING:*

This hearing is **vacated**. The Court sustained Defendant United States Fire Insurance Company's Demurrer to the Second Amended Complaint and Motion to Strike Plaintiff's Second Amended Complaint. See orders filed January 16, 2026. The Court is aware that Plaintiff is seeking relief from the Court's January 16, 2026 order. A hearing for Plaintiff's Motion for Relief is scheduled for August 19, 2026. No appearance is required on March 25, 2026.

17. 9:00 AM CASE NUMBER: C24-03465
CASE NAME: LOURDES DE LA MORA VS. JUAN GALLEGOS
***HEARING ON MOTION IN RE: SANCTIONS**
FILED BY: DE LA MORA, LOURDES
****TENTATIVE RULING:****
Summary

Plaintiff Lourdes De La Mora's ("Plaintiff") Motion for Terminating and Monetary Sanctions against Defendant Juan C. Gallegos ("Defendant") is **granted**.

Background

On December 1, 2025, Plaintiff filed this motion for terminating sanctions, including (1) a request to stay this case until the Court's discovery order, issued September 23, 2026, is obeyed; (2) issue sanctions to prohibit Defendant from contesting ownership issues in the property at issue; (3) that Defendant be prohibited from seeking reimbursements for expenses or improvements; and, (4) finally, for a default to be entered against Defendant.

Plaintiff also requests monetary sanctions in the amount of $1,126.79 as fees and costs for bringing this motion. The Motion is supported by Notice, Amended Notice, Memorandum of Points and Authorities, and Declaration of Counsel Rebekah J. Rose, and a proof of service. Counsel's declaration evidences an attempt to meet and confer to resolve this discovery issue prior to bringing this motion. No timely opposition was filed by Defendant.

Analyses

Defendant Failure to Oppose this Motion is Deemed to be Concession

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine (9) court days… before the hearing." Nine court days before the hearing is March 12, 2026. No timely opposition was filed by Plaintiff.

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410) (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings.

Terminating Sanctions

While this motion is unopposed, the Court is mindful of its duty to exercise terminating sanctions only when legally appropriate. Terminating sanctions under Code of Civil Procedure section 2023.030 authorizes a trial court to impose monetary sanctions, issue sanctions, evidence sanctions, or terminating sanctions against 'anyone engaging in conduct that is a misuse of the discovery process.'" *Doppes v. Bentley Motors, Inc*. (2009) 174 Cal.App.4th 967, 991. Subdivision (d) of section 2023.030 provides, "The court may impose a terminating sanction by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. (2) An order staying further proceedings by that party until an order for discovery is obeyed. (3) An order dismissing the action, or any part of the action, of that party. (4) An order rendering a judgment by default against that party." Section 2023.030(b) authorizes this Court to impose an issue sanction "from supporting or opposing designated claims or defenses."

The Discovery Act evinces an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. 'Discovery sanctions "should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery."' *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 487-488. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.'" *Doppes v. Bentley Motors, Inc.* (2009), 174 Cal.App.4th 967, 992, fn. omitted, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280 disapproved on other grounds in *Mileikowsky v. West Hills Hospital & Medical Center* (2009) 45 Cal.4th 1259.

The trial court may order a terminating sanction for discovery abuse "after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery." *Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246.

Applied here, the declaration submitted by Defendant's counsel evidences that Plaintiff still has not complied with the Court's September 23, 2025 order compelling discovery. The Court finds that such action demonstrates further lack of cooperation, and misuse of the discovery process. Accordingly, the Court finds good cause to grant this motion.

Ruling

1. Defendant's Motion is **granted**.
2. Pursuant to Cal. Code of Civ. Proc. § 2023.030(b), the Court issues the following issue sanctions: The Court orders that Defendant is prohibited from contesting ownership issues to the property at issue, and that Defendant is prohibited from seeking reimbursement for expenses or improvements in this case.
3. The Court orders Defendant to pay sanctions to Plaintiff in the amount of $1,126.79 as fees and costs for bringing this motion.
4. Defendant's counsel is ordered to prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling, no later than five (5) days from the date of this hearing.
5. The Court sets this matter for a trial setting conference on September 21, 2026 at 8:30 a.m. in Department 16. Defendant's counsel shall give notice of the Trial Setting conference in the

proposed order.

18. 9:00 AM CASE NUMBER: C25-01414
CASE NAME: ANTHONY PROVENCIO VS. ASPEN SURGERY CENTER, LLC,
***HEARING ON MOTION IN RE: TO ABATE OR, IN THE ALTERNATIVE, MOTION TO STAY PROCEEDINGS**
FILED BY: ASPEN SURGERY CENTER, LLC,
****TENTATIVE RULING:****

Before the Court is Defendant Aspen Surgery Center, LLC (“Defendant”)’s motion to abate the class action complaint or, in the alternative, motion to stay the proceedings on the grounds that two earlier-filed class actions are currently pending that encompass the claims set forth in this case (and that exclusive concurrent jurisdiction applies). Plaintiff Anthony Provencio and Plaintiff Darlene Yvonne Enersen (collectively, “Plaintiffs”) oppose the motion on several grounds.

As a threshold issue, Courts have held that the rule of exclusive concurrent jurisdiction is subject to waiver and should be raised by demurrer where the issue appears on the face of the complaint and by answer where factual issues must be resolved, followed by a motion to abate or for summary judgment. (*People ex rel. Garamendi v. American Autoplan, Inc*. (1993) 20 Cal.App.4th 760, 771; see *BBBB Bonding Corp. v. Caldwell* (2021) 73 Cal.App.5th 349, 374.) Defendant did not raise the issue by demurrer or answer. The Court declines to find waiver, however, because Plaintiffs have not argued waiver. Further, as *Garamendi* observed, “In some reported decisions, it is not clear whether motions to abate or stay without answer or demurrer may have been brought.” (*Garamendi*, at p. 771, fn. 9 [citing *Figgs v. Superior Court* (1962) 204 Cal.App.2d 231; *Gorman v. Superior Court* (1937) 23 Cal.App.2d 173]; see also Childs v. Eltinge (1973) 29 Cal.App.3d 843, 848 [rule raised by motion to quash or dismiss].)

For the following reasons, the motion is **granted**.

<u>Request for Judicial Notice</u>

Defendant’s unopposed request for judicial notice is **granted**.

<u>Brief Factual and Procedural Background</u>

Latrice Johnson filed a Class Action Complaint in Contra Costa County Superior Court, Case No. C25-00480, on February 13, 2025 alleging wage and hour violations against Sequoia Surgical Pavilion LLC, NSH California, LLC, NSH Management of California, LLC, National Surgical Hospitals, LLC, Sequoia Surgical Center, L.P., Sequoia Surgical Center Holding Company, LLC, and Surgery Partners, Inc. (“*Johnson*”). She filed a First Amended Class Action Complaint on April 28, 2025 alleging an additional cause of action pursuant to California’s Private Attorneys General Act (“PAGA”).

The plaintiff in *Johnson* seeks to represent “All persons who worked for Defendants as non-exempt, hourly paid employees in California, at any time from June 12, 2023, until the date of trial (“Class”).” (Request for Judicial Notice (“RJN”) Ex. 2, ¶58.)

Lacen Patton filed a class action complaint against defendants SP Management Services, Inc., Surgery

Partners, Inc., Dave Doherty, Jennifer Baldock, and Eric Evans ("*Patton*") on March 18, 2025 in Santa Barbara Superior Court alleging various wage and hour claims. On March 13, 2025, Patton submitted a Notice to the Labor Workforce Agency ("LWDA") seeking PAGA penalties, but has not yet filed an amended complaint alleging PAGA.

The plaintiff in *Patton* seeks to represent a class of "all current and former non-exempt employees of Defendants within the State of California at any time commencing four (4) years preceding the filing of Plaintiff's complaint up until the time that notice of the class action is provided to the class (collectively referred to as "Class Members")." (RJN Ex. 4, ¶38.)

Plaintiffs filed this class action on May 20, 2025, on behalf of themselves and all other non-exempt employees of Defendant in California during the time period beginning May 20, 2021, and ending on a date designated by the Court. Plaintiff asserts claims for (1) Violations of the Unfair Competition Law, (2) Failure to Pay Minimum Wages, (3) Failure to Pay Overtime Wages, (4) Failure to Provide Required Meal Periods, (5) Failure to Provide Required Rest Periods, (6) Failure to Provide Accurate Itemized Wage Statements, (7) Failure to Reimburse Employees, and (8) Failure to Pay Sick Pay Wages.

In this action, Plaintiffs seek to represent a class of "all individuals who are or previously were employed by DEFENDANT in California, including any employees staffed with DEFENDANT by a third party, and classified as non-exempt employees (the "CALIFORNIA CLASS") at any time during the period beginning four (4) years prior to the filing of this Complaint and ending on the date as determined by the Court (the "CALIFORNIA CLASS PERIOD")." (Complaint at ¶ 26.)

Defendants filed an answer in this case on September 5, 2025.

Plaintiffs filed a notice of submission of petition for coordination on March 13, 2026. It concerns the following actions:

1. *Johnson v. Sequoia Surgical Pavilion LLC et al*., Case No. C25-00480, pending in Contra Costa Superior Court ("Johnson");
2. *Patton v. SP Management Services, Inc. et al*., Case No. 25CV01659, pending in Santa Barbara Superior Court ("Patton");
3. *Provencio et al. v. Aspen Surgery Center, LLC*, Class Action, Case No. C25-01414, pending in Contra Costa Superior Court ("Provencio Class");
4. *Provencio et al. v. Aspen Surgery Center, LLC*, PAGA Action, Case No. C25-02316, pending in Contra Costa Superior Court ("Provencio PAGA"); and
5. *Williams v. SP Management Services, Inc. et al*., Class Action, Case No. C25-02024, pending in Contra Costa Superior Court ("Williams").

<u>Analysis</u>

Here, Defendant moves for abatement on the grounds that Plaintiffs' Complaint alleges the same causes of action and involves the same parties as *Johnson* and *Patton*.

For plea in abatement to apply, an identical cause of action or primary right must be involved in both suits so that a judgment in the first action would constitute a bar on the claim in the present action under the doctrine of res judicata/claim preclusion. (*Bush v. Superior Court* (1992) 10 Cal.App.4th 1374, 1384.) "To determine whether two proceedings involve identical causes of action for purposes of claim preclusion, California courts have consistently applied the 'primary rights' theory. [Citation.] Under this theory, a cause of action arises out of an antecedent primary right and corresponding duty and the... breach of such primary right and duty by the person on whom the duty rests." (*Boeken v. Philip Morris USA, Inc*. (2010) 48 Cal.4th 788, 797-798.) "[F]or purposes of applying the doctrine of res judicata, the phrase 'cause of action' has a more precise meaning: The cause of action is the right to obtain redress for a harm suffered, regardless of the specific remedy sought or the legal theory (common law or statutory) advanced." (*Id*. at p. 798.)

Similar to, but distinct from, abatement is the rule of "exclusive concurrent jurisdiction" applies: i.e., the first court to assert subject matter jurisdiction assumes it to the exclusion of all others, and has the power to enjoin the later proceedings in other courts. (See *Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal. App. 4th 1168, 1175; *Levine v. Smith* (2006) 145 Cal. App. 4th 1131, 1135; *County of Siskiyou v. Sup.Ct. (Environmental Law Found.)* (2013) 217 Cal App. 4th 83, 89.)

The doctrine of "'exclusive concurrent jurisdiction'" provides that when two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others. (*Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal.App.4th 1168, 1175; see also *Levine v. Smith* (2006) 145 Cal.App.4th 1131, 1135 ["Under the doctrine of priority of jurisdiction, the first superior court to assume and exercise jurisdiction in the case acquires exclusive jurisdiction until the matter is disposed of."].) The rule is "a judicial rule of priority or preference and is not jurisdictional in the traditional sense of the word," in that it "does not divest a court, which otherwise has jurisdiction of an action, of jurisdiction." (*Garamendi*, *supra*, 20 Cal.App.4th at pp. 764–765).) The purpose of this rule "is to avoid unseemly conflict between courts that might arise if they were free to make contradictory decisions or awards at the same time or relating to the same controversy" and "to protect litigants from the expense and harassment of multiple litigation." (*Scott v. Industrial Acci. Com.* (1956) 46 Cal.2d 76, 81–82.) Because it is a policy rule, the application of the rule in a given case depends upon the balancing of countervailing policies. (*Childs v. Eltinge* (1973) 29 Cal.App.3d 843, 854.)

"Unlike the statutory plea of abatement, the rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions." (*Plant Insulation Co. v. Fibreboard Corp*. (1990) 224 Cal.App.3d 781, 788.)

The Court finds the recent decision in *Shaw v. Superior Court* (2022) 78 Cal.App.5th 245 instructive. *Shaw* involved duplicative PAGA claims filed against Beverages & More!, Inc. (BevMo) in Los Angeles County and Contra Costa County. BevMo brought a motion to stay the Contra Costa County action under the doctrine of exclusive concurrent jurisdiction and under the court's inherent authority. (*Id*. at p. 252.) The *Shaw* court affirmed the trial court's decision to stay the matter under the pending concurrent jurisdiction doctrine. (*Id*. at p. 263.) In so doing, the court noted, "[w]e do not believe the absence of an express statutory prohibition on the filing of duplicative PAGA representative actions manifests the requisite unequivocal intent to repeal the well-established exclusive concurrent jurisdiction rule, especially considering the rule's important policies of avoiding conflicting decisions and preventing vexatious litigation and multiplicity of suits." (*Id*. at p. 259.)

Here, the *Johnson* and *Patton* actions involve the same causes of action as the instant case, as detailed in the below table:

Causes of Action:	***Johnson***	***Patton***	***Provencio***
Violation of California Labor Code §§ 510 and 1198 (Unpaid Overtime)	X	X	X
Violation of California Labor Code §§ 1182.12, 1182.14, 1194, 1197, 1197.1, and 1198 (Unpaid Minimum Wages)	X	X	X
Violation of California Labor Code §§ 226.7, 512(a), 516, and 1198 (Failure to Provide Meal Periods)	X	X	X
Violation of California Labor Code §§ 226.7, 516, and 1198 (Failure to Authorize and Permit Rest Periods)	X	X	X
Violation of California Labor Code §§ 226(a), 1174(d), and 1198 (Non-Compliant Wage Statements and Failure to Maintain Payroll Records)	X	X	X
Violation of California Labor Code §§ 201 and 202 (Wages Not Timely Paid Upon Termination)	X	X	
Violation of California Labor Code § 204 (Failure to Timely Pay Wages During Employment)	X		
Violation of Labor Code § 1198 and California Code of Regulations, Title 8, Section 11040 Subdivision 5(A) (Failure to Provide Reporting Time Pay)	X		
Violation of California Labor Code § 2802 (Unreimbursed Business Expenses)	X	X	X
Violation of California Business & Professions Code §§ 17200, et seq. (Unlawful Business Practices and Unfair Practices)	X	X	X
Violation of Labor Code § 226(c)		X	
Violation of Labor Code § 1198.5		X	
Failure to Pay Sick Pay in Violation of Labor Code §246		X	X

Defendants argue that both *Johnson* and *Patton* matters name Surgery Partners, Inc. ("Surgery Partners") as a defendant and that Surgery Partners is the parent company of its subsidiaries and is affiliated with several entities nationwide providing surgical and ancillary services which include multi-specialty physician practices and anesthesia services. (Declaration of Stefanii Trautvetter ("Trautvetter Decl.") at ¶ 3.) Specifically, Defendants note that Surgery Partners is the parent company and affiliated with all of the various named entities identified in Johnson, Patton and Provencio actions. (*Id*. at ¶¶ 3-15.) As a consequence,

Plaintiffs argue in opposition that the parties are not the same; however, as noted by Defendants in their moving papers, while Aspen is not a named defendant in the Johnson and Patton actions, Aspen is one of several subsidiaries of Surgery Partners, Inc., which is a named defendant in both Johnson and Patton. (Trautvetter Decl., ¶¶6, 12.) Furthermore, the putative class Plaintiffs seek to represent are the same in each of the related actions—they cover the same time period, claims, and group of employees. (See, e.g., *Alch v. Superior Court* (2004) 122 Cal.App.4th 339, 363 fn. 8 ["where the prospective class is the same, the identity of the named plaintiffs does not affect the question whether a FEHA class action in state court is, or is not, barred by section 12965(b)."].)

Plaintiffs' remaining arguments are largely directed at the substantive benefits of coordination but do not squarely address the issue of exclusive concurrent jurisdiction.

Because the Court finds that the conditions for application of concurrent exclusive jurisdiction exist here, an order staying this action is mandatory. (See *Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 787 ["An order of abatement issues as a matter of right not as a matter of discretion where the conditions for its issuance exist."].)

<u>Conclusion</u>

The motion is **granted** and this proceeding is stayed until one of the following occurs:

a. The Johnson and Patton actions are finally resolved by judgment, settlement, or otherwise;

b. The coordination motion judge, or if Plaintiffs' petition is granted, the coordination trial judge, issues an order that the stay is lifted in whole or in party; or

c. The Court enters a further order upon the noticed motion of either side.

19. 9:00 AM CASE NUMBER: C25-01967
CASE NAME: PARAS GIRDHAR VS. HYUNDAI MOTOR AMERICA
***HEARING ON MOTION IN RE: ATTORNEY'S FEES, COSTS, AND EXPENSES**
FILED BY: GIRDHAR, PARAS
<u>*TENTATIVE RULING:*</u>
<u>Summary</u>

Plaintiff Paras Girdhar's ("Plaintiff") Motion for Attorney's fees and costs against Defendant Hyundai North America ("Defendant" or "Hyundai") is **<u>granted</u>** as set forth herein.

Background

This litigation is a Song-Beverly ("Lemon Law") action. On April 29, 2025, Plaintiff purchased a Hyundai Santa Fe ("Subject Vehicle") from one of Defendant's authorized retailers. During the warranty period, the vehicle contained and/or developed defects, including the Air Conditioner defect, for which Plaintiff was repeatedly forced to return to Defendant's authorized repair facilities. Despite Plaintiff's multiple presentations of the Subject Vehicle, Defendant and its authorized repair facilities were unable to conform the Subject Vehicle to its warranty. Dissatisfied with Defendant's unsuccessful efforts to repair the Subject Vehicle, Plaintiff contacted Defendant on June 6, 2025, seeking assistance under California Lemon Law. Plaintiff advised Defendant of the ongoing problems experienced with the Subject Vehicle since acquired and requested a buy back.

Seventy two (72) days later, on or about July 10, 2025, the parties reached a settlement via Defendant's informal offer whereby Defendant agreed to repurchase the Subject Vehicle and pay Plaintiff's attorney fees and costs pursuant to a noticed motion ("Settlement"). Singh Decl. ¶ 10, Ex. 2. The Parties further agreed that Plaintiff's attorney fees and costs could be decided by motion, and that Plaintiff was the prevailing party for purposes of this Motion.

On November 24, 2026, Plaintiff filed this Motion for Attorney's fees and Costs pursuant to the Song-Beverly Consumer Warranty Act, Civ. Code § 1794(d), requesting an award of attorney fees in the total amount of $13,680.03, including: (1) $8,633.00 incurred in attorney fees; (2) an additional $4,000.00 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply brief, and attend the hearing on this Motion (though they expect to spend over ten hours on the same); (3) $522.03 in Plaintiff's uncontested costs and expenses; (4) and $525.00 in anticipated costs and expenses for a court reporter for the hearing on the instant Motion. The Motion was accompanied by Notice, Amended Notice, Memorandum of Points and Authorities, the Declaration of Counsel Gunwant Singh and Memorandum of Costs.

On March 12, 2026, Defendant filed opposition to this Motion, claiming, essentially, that the fees requested are excessive, given that the case settled within a few days of within Defendant's repurchase offer and before Defendant appeared in this case. Defendant's counsel argues the Court should award Plaintiff's Counsel $2,500 for fees and costs—the reasonable amount previously offered by Defendant. But even if the Court looks at the entire fee bill, the Court should deny the inflated, excessive and unreasonable fees incurred by Plaintiff's Song-Beverly attorneys, and award Plaintiff no more than $3,240 in fees.

Analyses

An award of attorney fees and costs to Plaintiff as the prevailing party in this Song-Beverly case is mandatory. Cal. Civ. Code § 1794(d) states:

> If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

This fee and cost recovery provision reflects the Legislature's intent to provide "injured consumers strong encouragement to seek legal redress" for Lemon Law clams. *Murillo v. Fleetwood Enterprises, Inc.* (1998) 17 Cal.4th 985, 994; *Robertson v. Fleetwood Travel Trailers of California, Inc*. (2006) 144 Cal.App.4th 785, 817; *Wohlgemuth v. Caterpillar, Inc*. (2012) 207 Cal.App.4th 1252, 1262 ("[T]he provision for recovery of costs and attorney fees in Section 1794(d) is an important aspect of this consumer protection, and without it many would not be financially able to pursue a remedy."

Under California law, the lodestar/multiplier is the primary method for determining what fees are "reasonable" under the statutory attorney fees provision of Song Beverly. *Robertson*, *supra*, at 818-819. See also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135 (California Supreme Court endorsing the lodestar method as the prevailing method for statutory fee awards. The lodestar approach "anchors the trial court's analysis to an objective determination of the attorney's services, ensuring the amount awarded is not arbitrary." *Graciano* at 154

California law also gives trial courts unilateral discretion to reduce attorney fee amounts in any way they choose. See *Mikaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240 ("A trial court may not rubber stamp a request for attorney fees but must determine the number of hours reasonably expended."); *Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271 ("[T]rial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation."); *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132. Courts should consider "whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended." See *Christian Research Inst. v. Alnor* (2008) 165 Cal.App.4th 1315, 1320.

Applied here, after reviewing the declarations of both counsel, applying the *Lodestar* Factors, and reviewing the facts of this case, the Court finds that the amount of hours that Plaintiff's counsel intends to seek exceed the reasonable amount of fees that should have been expended to settle this case. This case settled two months and eleven days after the complaint was filed, and before Defendant made an appearance. The Court acknowledges that there are fees expended in prosecuting this case from the outset. However, the Court presumes that all billable work should have stopped upon settlement and the only work expended for this file should be this motion for attorney's fees and costs, and any residual wrap-up to finalize the Settlement. In reviewing the work performed on this file by Plaintiff's counsel, the Court finds that work performed on this motion, along with the billable hours expended by counsels working on this file, demonstrates that there were inefficiencies in having more than one attorney work on this file. The costs for a court reporter are speculative and not incurred, and the fees for preparing a reply brief to this motion appear to excessive. Taking these circumstances into consideration, the Court finds that a reduction in the amount of 65% of the fees are reasonable and exercises its discretion to award 35% of the fees requested, given the rapid settlement of this case.

Ruling

1. Plaintiff's Motion is **granted**.
2. Plaintiff is awarded $4,762.81 in attorney's fees.
3. Plaintiff is awarded $522.03 in costs pursuant to its Memorandum of Costs filed on October 10, 2025.

4. Fees and costs shall be paid no later than thirty (30) days from the date of notice of entry of this order.
5. Plaintiff's counsel shall prepare a proposed order conforming to the foregoing, attaching the court's tentative ruling no later than five (5) days from the date of this hearing.

20. 9:00 AM CASE NUMBER: C25-02024
CASE NAME: CHRISTY WILLIAMS VS. SP MANAGEMENT SERVICES, INC.
***HEARING ON MOTION IN RE: TO ABATE OR IN ALT MOTION TO STAY PROCEEDINGS**
FILED BY: NATIONAL SURGICAL HOSPITALS, LLC
<u>*TENTATIVE RULING:*</u>

Before the Court is Defendant SP Management Services, Inc., Pain Management Associates Inc., Sequoia Surgical Pavilion LLC, NSH California, LLC, NSH Management of California, LLC, National Surgical Hospitals, LLC, Sequoia Surgical Center, L.P., Sequoia Surgical Center Holding Company, LLC, Surgery Partners (collectively, "Defendants") motion to abate the class action and representative PAGA First Amended Complaint or, in the alternative, move to stay the proceedings on the grounds that earlier-filed class and PAGA actions are currently pending that encompass the claims set forth in this case. In opposition, Plaintiff requests only that the Court stay the action rather than abate it.

The motion is **<u>granted</u>** and this proceeding is stayed until one of the following occurs:

a. The *Johnson*. *Williams*, and *Patton* actions are finally resolved by judgment, settlement, or otherwise;

b. The coordination motion judge, or if Plaintiff's petition is granted, the coordination trial judge, issues an order that the stay is lifted in whole or in party; or

c. The Court enters a further order upon the noticed motion of either side.

21. 9:00 AM CASE NUMBER: C25-02316
CASE NAME: ANTHONY PROVENCIO VS. ASPEN SURGERY CENTER, LLC,
***HEARING ON MOTION IN RE: TO ABATE**
FILED BY: ASPEN SURGERY CENTER, LLC,
<u>*TENTATIVE RULING:*</u>

Before the Court is Defendant Aspen Surgery Center, LLC ("Defendant")'s motion to abate the class action complaint or, in the alternative, motion to stay the proceedings on the grounds that two earlier-filed class actions are currently pending that encompass the claims set forth in this case (and that exclusive concurrent jurisdiction applies). Plaintiff Anthony Provencio and Plaintiff Darlene Yvonne Enersen (collectively, "Plaintiffs") oppose the motion on several grounds.

As a threshold issue, Courts have held that the rule of exclusive concurrent jurisdiction is subject to waiver and should be raised by demurrer where the issue appears on the face of the complaint and by answer where factual issues must be resolved, followed by a motion to abate or for summary judgment. (*People ex rel. Garamendi v. American Autoplan, Inc*. (1993) 20 Cal.App.4th 760, 771; see *BBBB Bonding Corp. v. Caldwell* (2021) 73 Cal.App.5th 349, 374.) Defendant did not raise the issue by demurrer or answer. The Court declines to find waiver, however, because Plaintiffs have not argued waiver. Further, as *Garamendi* observed, "In some reported decisions, it is not clear whether motions to abate or stay without answer or demurrer may have been brought." (*Garamendi*, at p. 771, fn. 9 [citing *Figgs v. Superior Court* (1962) 204 Cal.App.2d 231; *Gorman v. Superior Court* (1937) 23 Cal.App.2d 173]; see also *Childs v. Eltinge* (1973) 29 Cal.App.3d 843, 848 [rule raised by motion to quash or dismiss].)

For the following reasons, the motion is **granted**.

Request for Judicial Notice

Defendant's unopposed request for judicial notice is **granted**.

Brief Factual and Procedural Background

Latrice Johnson filed a Class Action Complaint in Contra Costa County Superior Court, Case No. C25-00480, on February 13, 2025 alleging wage and hour violations against Sequoia Surgical Pavilion LLC, NSH California, LLC, NSH Management of California, LLC, National Surgical Hospitals, LLC, Sequoia Surgical Center, L.P., Sequoia Surgical Center Holding Company, LLC, and Surgery Partners, Inc. ("*Johnson*"). She filed a First Amended Class Action Complaint on April 28, 2025 alleging an additional cause of action pursuant to California's Private Attorneys General Act ("PAGA").

The plaintiff in *Johnson* seeks to represent "All persons who worked for Defendants as non-exempt, hourly paid employees in California, at any time from June 12, 2023, until the date of trial ("Class")." (Request for Judicial Notice ("RJN") Ex. 2, ¶58.)

Lacen Patton filed a class action complaint against defendants SP Management Services, Inc., Surgery Partners, Inc., Dave Doherty, Jennifer Baldock, and Eric Evans ("*Patton*") on March 18, 2025 in Santa Barbara Superior Court alleging various wage and hour claims. On March 13, 2025, Patton submitted a Notice to the Labor Workforce Agency ("LWDA") seeking PAGA penalties, but has not yet filed an amended complaint alleging PAGA.

The plaintiff in *Patton* seeks to represent a class of "all current and former non-exempt employees of Defendants within the State of California at any time commencing four (4) years preceding the filing of Plaintiff's complaint up until the time that notice of the class action is provided to the class (collectively referred to as "Class Members")." (RJN Ex. 4, ¶38.)

Plaintiffs filed a class action on May 20, 2025, on behalf of themselves and all other non-exempt employees of Defendant in California during the time period beginning May 20, 2021, and ending on a date designated by the Court ("*Provencio Class*"). In case no. C25-01414 Plaintiffs assert claims for (1) Violations of the Unfair Competition Law, (2) Failure to Pay Minimum Wages, (3) Failure to Pay Overtime Wages, (4) Failure to Provide Required Meal Periods, (5) Failure to Provide Required Rest Periods, (6) Failure to Provide Accurate Itemized Wage Statements, (7) Failure to Reimburse Employees, and (8) Failure to Pay Sick Pay Wages.

On August 13, 2025, Plaintiff Anthony Provencio and Plaintiff Darlene Yvonne Enerson filed the instant representative action complaint pursuant to PAGA ("*Provencio PAGA*") against defendant Aspen Surgery Center, LLC ("Provencio PAGA") in Contra Costa County Superior Court, seeking PAGA penalties. By this action, Plaintiffs seek to represent all aggrieved non-exempt employees of

Defendant during the time period of June 2, 2024 until a date as determined by the Court. (Complaint at ¶ 9.)

Plaintiffs filed a notice of submission of petition for coordination on March 13, 2026. It concerns the following actions:

6. *Johnson v. Sequoia Surgical Pavilion LLC et al*., Case No. C25-00480, pending in Contra Costa Superior Court ("Johnson");
7. *Patton v. SP Management Services, Inc. et al*., Case No. 25CV01659, pending in Santa Barbara Superior Court ("Patton");
8. *Provencio et al. v. Aspen Surgery Center, LLC*, Class Action, Case No. C25-01414, pending in Contra Costa Superior Court ("Provencio Class");
9. *Provencio et al. v. Aspen Surgery Center, LLC*, PAGA Action, Case No. C25-02316, pending in Contra Costa Superior Court ("Provencio PAGA"); and
10. *Williams v. SP Management Services, Inc. et al*., Class Action, Case No. C25-02024, pending in Contra Costa Superior Court ("Williams").

<u>Analysis</u>

Here, Defendant moves for abatement on the grounds that Plaintiffs' Complaint alleges the same causes of action and involves the same parties as *Johnson* and *Patton*.

For plea in abatement to apply, an identical cause of action or primary right must be involved in both suits so that a judgment in the first action would constitute a bar on the claim in the present action under the doctrine of res judicata/claim preclusion. (*Bush v. Superior Court* (1992) 10 Cal.App.4th 1374, 1384.) "To determine whether two proceedings involve identical causes of action for purposes of claim preclusion, California courts have consistently applied the 'primary rights' theory. [Citation.] Under this theory, a cause of action arises out of an antecedent primary right and corresponding duty and the... breach of such primary right and duty by the person on whom the duty rests." (*Boeken v. Philip Morris USA, Inc*. (2010) 48 Cal.4th 788, 797-798.) "[F]or purposes of applying the doctrine of res judicata, the phrase 'cause of action' has a more precise meaning: The cause of action is the right to obtain redress for a harm suffered, regardless of the specific remedy sought or the legal theory (common law or statutory) advanced." (*Id*. at p. 798.)

Similar to, but distinct from, abatement is the rule of "exclusive concurrent jurisdiction" applies: i.e., the first court to assert subject matter jurisdiction assumes it to the exclusion of all others, and has the power to enjoin the later proceedings in other courts. (See *Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal. App. 4th 1168, 1175; *Levine v. Smith* (2006) 145 Cal. App. 4th 1131, 1135; *County of Siskiyou v. Sup.Ct. (Environmental Law Found.)* (2013) 217 Cal App. 4th 83, 89.)

The doctrine of "'exclusive concurrent jurisdiction'" provides that when two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others. (*Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal.App.4th 1168, 1175; see also *Levine v. Smith* (2006) 145 Cal.App.4th 1131, 1135 ["Under the doctrine of priority of jurisdiction, the first superior court to assume and exercise jurisdiction in the case acquires exclusive jurisdiction until the matter is disposed of."].) The rule is "a judicial rule of priority or preference and is not jurisdictional in the traditional sense of the word," in that it "does not divest a court, which otherwise has jurisdiction of an action, of jurisdiction." (*Garamendi*, *supra*, 20 Cal.App.4th at pp. 764–765).) The purpose of this rule "is to avoid unseemly conflict between courts that might arise if they were free to make contradictory decisions or awards at the same time or relating to the same controversy" and "to protect litigants from the expense and harassment of multiple litigation." (*Scott v. Industrial Acci. Com.* (1956) 46 Cal.2d 76, 81–82.) Because it is a policy rule, the application of the rule in a given case depends upon the balancing of countervailing policies. (*Childs v. Eltinge* (1973) 29 Cal.App.3d 843, 854.)

"Unlike the statutory plea of abatement, the rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions." (*Plant Insulation Co. v. Fibreboard Corp*. (1990) 224 Cal.App.3d 781, 788.)

The Court finds the recent decision in *Shaw v. Superior Court* (2022) 78 Cal.App.5th 245 instructive. *Shaw* involved duplicative PAGA claims filed against Beverages & More!, Inc. (BevMo) in Los Angeles County and Contra Costa County. BevMo brought a motion to stay the Contra Costa County action under the doctrine of exclusive concurrent jurisdiction and under the court's inherent authority. (*Id*. at p. 252.) The *Shaw* court affirmed the trial court's decision to stay the matter under the pending concurrent jurisdiction doctrine. (*Id*. at p. 263.) In so doing, the court noted, "[w]e do not believe the absence of an express statutory prohibition on the filing of duplicative PAGA representative actions manifests the requisite unequivocal intent to repeal the well-established exclusive concurrent jurisdiction rule, especially considering the rule's important policies of avoiding conflicting decisions and preventing vexatious litigation and multiplicity of suits." (*Id*. at p. 259.)

Here, the *Johnson* and *Patton* actions involve the same causes of action as the instant case (*Provencio PAGA*), as detailed in the below table:

Causes of Action:	***Johnson***	***Patton***	***Provencio PAGA***
Violation of California Labor Code §§ 510 and 1198 (Unpaid Overtime)	X	X	X
Violation of California Labor Code §§ 1182.12, 1182.14, 1194, 1197, 1197.1, and 1198 (Unpaid Minimum Wages)	X	X	X
Violation of California Labor Code §§ 226.7, 512(a), 516, and 1198 (Failure to Provide Meal Periods)	X	X	X
Violation of California Labor Code §§ 226.7, 516, and 1198 (Failure to Authorize and Permit Rest Periods)	X	X	X
Violation of California Labor Code §§ 226(a), 1174(d), and 1198 (Non-Compliant Wage Statements and Failure to Maintain Payroll Records)	X	X	X

Violation of California Labor Code §§ 201 and 202 (Wages Not Timely Paid Upon Termination)	X	X	
Violation of California Labor Code § 204 (Failure to Timely Pay Wages During Employment)	X		X
Violation of Labor Code § 1198 and California Code of Regulations, Title 8, Section 11040 Subdivision 5(A) (Failure to Provide Reporting Time Pay)	X		
Violation of California Labor Code § 2802 (Unreimbursed Business Expenses)	X	X	
Violation of Labor Code § 226(c) (Failure to Provide Wage Statements Upon Request)		X	
Violation of Labor Code § 1198.5 (Failure to Permit Inspection of Personnel File)	X	X	
Failure to Pay Sick Pay in Violation of Labor Code §246		X	X
Violation of Labor Code § 2810.5 (Failure to prove Notice of Material Terms of Employment)			
Violation of Labor Code § 206.5 (Requiring Employees to Execute Releases of Claims as Condition of Employment)	X		
Violation of Labor Code §§ 98.6 and 1102.5 (Retaliation)		X	
Failure to Pay Accrued Vacation in Violation of § 227.3		X	

Defendants argue that both *Johnson* and *Patton* matters name Surgery Partners, Inc. ("Surgery Partners") as a defendant and that Surgery Partners is the parent company of its subsidiaries and is affiliated with several entities nationwide providing surgical and ancillary services which include multi-specialty physician practices and anesthesia services. (Declaration of Stefanii Trautvetter ("Trautvetter Decl.") at ¶ 3.) Specifically, Defendants note that Surgery Partners is the parent company and affiliated with all of the various named entities identified in Johnson, Patton and Provencio actions. (*Id*. at ¶¶ 3-15.) As a consequence, Plaintiffs argue in opposition that the parties are not the same; however, as noted by Defendants in their moving papers, while Aspen is not a named defendant in the Johnson and Patton actions, Aspen is one of several subsidiaries of Surgery Partners, Inc., which is a named defendant in both Johnson and Patton. (Trautvetter Decl., ¶¶6, 12.) Furthermore, the putative class Plaintiffs seek to represent are the same in each of the related actions—they cover the same time period, claims, and group of employees. (See, e.g., *Alch v. Superior Court* (2004) 122 Cal.App.4th 339, 363 fn. 8 ["where the prospective class is the same, the identity of the named plaintiffs does not affect the question whether a FEHA class action in state court is, or is not, barred by section 12965(b)."].)

Plaintiffs' remaining arguments are largely directed at the substantive benefits of coordination but do not squarely address the issue of exclusive concurrent jurisdiction.

Because the Court finds that the conditions for application of concurrent exclusive jurisdiction exist here, an order staying this action is mandatory. (See *Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 787 ["An order of abatement issues as a matter of right not as a matter of discretion where the conditions for its issuance exist."].)

<u>Conclusion</u>

The motion is **<u>granted</u>** and this proceeding is stayed until one of the following occurs:

d. The *Johnson* and *Patton* actions are finally resolved by judgment, settlement, or otherwise;

e. The coordination motion judge, or if Plaintiffs' petition is granted, the coordination trial judge, issues an order that the stay is lifted in whole or in party; or

f. The Court enters a further order upon the noticed motion of either side.

22. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: PRIYAM MADHUKAR
FILED BY: SYNGENTA AG
<u>*TENTATIVE RULING:*</u>
<u>Summary</u>

Defendants Syngenta AG and Syngenta Crop Protection, LLC's ("Defendants or Syngenta"), Motion for an order permitting Priyam Madhukar of the law firm Kirkland & Ellis LLP (US) to appear as counsel Pro Hac Vice on its behalf in the above-entitled action is **<u>granted</u>**. No appearance is required at the hearing on March 25, 2026.

The Court also sets-aside any order re-assigning this case to Hon. Julia Campins, Department 10, for all purposes. Any such order is entered by mistake. This case remains in Department 16.

<u>Background</u>

On October 7, 2025, Defendant filed Notice of Hearing on Verified Application of Gregory Rousso, and Verified Application of Priyam Madhukar, Esq. This motion is not opposed.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Priyam Madhukar Esq. declares facts under penalty of perjury to support the application under CRC Rule 9.40. The Court is satisfied that all requirements to appear as counsel pro hac vice in this matter appears to be met. Ms. Madhukar is not a resident of the state of California, nor is she a member of the California bar. (Rousso Decl. ¶ 4.) Ms. Madhukar, however, is a member in good standing and admitted to practice in the courts of Illinois in November 2024. Ms. Madhukar has never been suspended or disbarred from practice in any court. No court has denied his application to be admitted *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is **granted**. Priyam Madhukar, Esq. is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. The Court will execute the proposed order granting lodged with the Court on October 17, 2025. No appearance is required at the March 25, 2026 hearing.

The Court also sets-aside any order re-assigning this case to Hon. Julia Campins, Department 10, for all purposes. Any such order is entered by mistake. This case remains in Department 16. The Clerk of the Court is ordered to enter and served a minute order to all counsel by e-mail.

23. 9:00 AM CASE NUMBER: N25-2112
CASE NAME: AMAN POHYAR VS. IBRAHIM SHARIFF
***HEARING ON MOTION IN RE: REQUESTING THE ABOVE ENTITLED CASE UNDER COMPLAINT FOR EVICTION SET UP FOR COURT HEARING**
FILED BY: POHYAR, AMAN
****TENTATIVE RULING:****

See Tentative Ruling, Line No. 7, above.

Discovery Law & Motion

24. 9:01 AM CASE NUMBER: C22-00742
CASE NAME: PHILIP FERREIRA VS. WILLIAM MYERS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO AND COMPLIANCE WITH REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE**
FILED BY: BARABI, MINOU
****TENTATIVE RULING:****
Summary

This tentative ruling applies to Lines 24 and 25. Cross Defendant and Cross-Complainant Minou Barabi ("Barabi") filed two discovery motions against the Cross-Complainants and Cross Defendants Philip and Crystal Ferreira ("Ferreiras"), which are set for hearing on March 25, 2026:

1. Motion to Compel Further Responses and Compliance with Request for Production of Documents, Set One, Nos. 9, 12, 22 through 29, 31, 32, as well as a production of documents, and an order compelling the Ferreiras' compliance with their responses to produce responsive documents to Barabi's Request Nos. 43, 46 through 50, filed on November 18, 2025; and
2. Motion to Compel the Ferreiras to provide Further Responses to Special Interrogatories, Set One, Nos. 20 through 31, filed on November 18, 2025.

As set forth in its ruling below the Court **grants**, in part, and **denies**, in part both motions.

Background

This case alleges disputes between Plaintiffs Ferreiras and their neighbors Defendants William and Fran Myers ("Myers"), which include alleged real property damage that dates back to 2020. The Ferreiras and the Myers were the original parties to this lawsuit – asserting claims and cross-claims – for two years before the Ferreiras filed a cross-complaint for indemnity and contribution against Barabi, an adjacent neighbor. In March 2025, Barabi filed an answer and her cross-complaint against the Ferreiras and another neighbor. Also in March 2025, the Montair Property Owners' Association filed a separate lawsuit in this Court (Case No. C25-00704, which remains pending) against the Ferreiras for breach of the governing documents, nuisance and declaratory relief.

On May 8, 2025, Barabi served her first set of written discovery on the Ferreiras, addressing the multiple claims at issue in this lawsuit. Since the Ferreiras requested several extensions of time to respond, it was not until August 21 and 22, 2025, that the Ferreiras served their written responses. Then, the Ferreiras' counsel produced documents on a "rolling basis" from September 8 to October 6, 2025. Barabi's counsel claims that in response to Barabi's Request for Production Nos. 9, 12 through 29, 31 and 32, the Ferreiras stated only groundless objections and no substantive responses. In addition, they did not produce responsive documents as committed by their responses to Request for Production Nos. 43, and 46 through 50.

Ms. Barabi also served Special Interrogatories on May 8, 2025. After several extensions granted to the Ferreiras, Barabi received responses to Special Interrogatories Nos. 20 through 31 which she claims contains only meritless objections without substantive responses.

Despite Barabi's several meet and confer attempts since August 2025, the Ferreiras have not agreed to resolve these discovery disputes. Therefore, Barabi must bring this motion to obtain responses and a complete production, which are necessary for Barabi to defend against the Ferreiras' claims against her, as well as for Barabi to address the claims in her cross-complaint. Barabi filed these two discovery Motions on November 18, 2025. The Motions were supported by Memorandum of Points and Authorities, Separate Statement and Declaration of Allison Beanum.

The Ferreiras, through Counsel, filed timely oppositions to both motions. The Ferreiras claim that, in response to Barabi's request for production of documents, they have produced hundreds of responsive photos and videos contained in a 24 gigabyte digital production, and several responsive documents. They also assert that the scope of the requests were broad, and there was no effort to determine whether Ferreiras' production satisfied the requests. Similarly, for the interrogatories, the Ferreiras claim that Barabi's interrogatories were overbroad, burdensome, sought privileged communications, and did not recognize the responses already produced. The opposition was supported by Memorandum of Points and Authorities, Separate Statement and Declaration of Jack Klauschie.

In reply, Barabi claims that the Ferrerias improperly attempt to limit the scope of their discovery responses to the cross-complaint they maintain against her, and have otherwise failed to provide responses requested.

<u>Analyses</u>

First, Counsel are admonished that this Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed Cal CEB) §15.38.6.

<u>Scope of Discovery</u>

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra,* 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119.

The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co*., (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

In exercising its discretion in ruling on discovery motions, the trial court relies on the Civil Discovery Act and the legislative purpose of avoiding surprise and preventing fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in discovery practice in California has been in place for over sixty years. The California Supreme Court in the seminal case of *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remain applicable today. "That is, the Legislature intended to take the "game" element out of trial preparation while yet retaining the adversary nature of the trial itself. One of the principal purposes of discovery was to do away "with the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court,* 54 Cal.2d 548, 561. See also page 572 of the same opinion wherein we adopted from *United States v. Proctor & Gamble Co*., 356 U.S. 677, the phrase that discovery tends to "make a trial less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

<u>Meet and Confer Requirements</u>

The parties to a discovery dispute are required to meet and confer and pursue a reasonable and good faith attempt to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. ("CCP") §§ 2016.040, 2030.300, *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138. In addition to the statutory requirements, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court's local rules states that motions "should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved." L.R. 2.122(c).

Here, the record submitted to the Court shows counsel exchange several communications and video meetings to attempt to resolve the outstanding issues. The Court finds that Counsel have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

<u>Interrogatories</u>

The grounds set forth in CCP §§ 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are "incomplete or evasive," or an "objection to an interrogatory is without merit or too general." When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. CCP § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court, supra,* 22 Cal.4th 245, 255.

If a responding party does not have documents in response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control or the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (CCP §§ 2031.310(a)(2) and 2031.230). Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also CCP. §§ 2023.010(e),(f) and (h), and CCP §§ 2030.210, 2030.220 (b)(c). It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California's Discovery act was "intended to take the 'game' element out of trial preparation," considering that "a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise." (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Attorney Client or Work Product Privilege Doctrines

If a responding party seeks to assert the Attorney Client Privilege or Work Product Doctrine Privilege, it shall provide a privilege log specifying in detail each document being withheld, the date of the document, the author, and what privilege applies. (CCP§ 2031.240(c)(1). If Counsel objects based on this privilege, Counsel must produce a privilege log

After considering the moving papers, including the declarations submitted to the Court, the arguments of Counsel, and after applying the relevant statutory and decisional authorities, the Court makes the following findings and orders.

Ruling

1. The Court rules on Barabi's Motion to Compel Further Response to Request for Production of Documents, Set One, 9, 12 through 29, 31 and 32 , and 43, 46-50 as follows:

No. 9: **Granted** in Part. **Denied** in Part. Ferreiras objection based on the attorney client privilege is **sustained**. While attorney's fees and cost bills are privileged, the legal bases for seeking attorney's fees is not. Ferreiras shall produce further responses, redacting any communications protected by the privilege.

No. 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 23, 24, 25, 26, 27, 28, 29, 31, 32, 46, 48 and 50. **Granted**. The objections are **overruled**. As defined, the term "Work, " is not ambiguous. The other definitions stated in the request are not vague, or ambiguous. Ferreiras shall produce further responses. If Ferrerias produced every document that is responsive to this request, then it should say so in a further verified response. . If the Ferreiras do not have any documents responsive to these requests, then it should file a further verified response with (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control or the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item pursuant to Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. It is unacceptable to prepare a response that does not comply with this provision of the Discovery Act.

No. 22. **Denied**. The request, seeking "All COMMUNICATIONS from January 1, 2020 to the present between YOU or anyone on YOUR behalf on the one hand, and BARABI or anyone on her behalf on the other hand regarding any of the PROPERTIES" is too vague, overbroad and potentially seeks irrelevant information. The objections are sustained. No further response is warranted.

No. 43, 47 and 49. **Granted** in part. **Denied** in part. The attorney client and/or work product privileges are **sustained**. The objections based on the attorney client privilege require the production of a privilege log. Ferrerias shall produce a detailed privilege log listing a general description of each document that is responsive to the request, which is being withheld by Counsel due to privilege, the number of pages it contains, and the privilege that is asserted pursuant to Cal. Code of Civ. Proc. § 2031.240(c)(1). All other documents that are not privileged shall be produced, redacting any privileged communications.

If Ferrerias produced every document that is responsive to this request, then it should say so in a further verified response. If the Ferreiras do not have any documents responsive to these requests, then it should file a further verified response with (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control or the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item pursuant to Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. It is unacceptable to prepare a response that does not comply with this provision of the Discovery Act.

2. The Court rules on Barabi's Motion to Compel the Ferreiras to provide Further Responses to Special Interrogatories, Set One, Nos. 20 through 31, filed on November 18, 2025, as follows.

No. 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30 and 31 . **Granted**. The objections are **overruled**, with the exception of any objections based on the attorney client privilege and the work product doctrine, which are **sustained**. As defined, the term "Work, " is not ambiguous. The other definitions stated in the request are not vague, or ambiguous. Ferreiras shall produce further answers to these interrogatories. . Granted. The objections are overruled. As defined, the term "Work, " is not ambiguous. The other definitions stated in the request are not vague, or ambiguous. Ferreiras shall produce further responses, and shall redact any privileged communications. If Ferrerias produced every document that is responsive to this request, then it should say so in a further verified response. Ferreiras are not required to produce further answers that would breach the attorney client privilege.

3. Time for responses. All further responses to request for production of documents and interrogatories shall be produced no later than fifteen (15) days from the date of this order and shall be verified.
4. Barabi's counsel shall prepare a proposed order conforming to this ruling no later than ten (10) days from the date of this hearing, attaching a copy of this tentative ruling.
5. Each party to bear their own attorney's fees and costs in prosecuting and/or defending against these motions.
6. The Court reserves the option of referring further discovery motions to a discovery referee.

25. 9:01 AM CASE NUMBER: C22-00742
CASE NAME: PHILIP FERREIRA VS. WILLIAM MYERS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE**
FILED BY: BARABI, MINOU
TENTATIVE RULING:
See Tentative Ruling on Line No. 24, above.

26. 9:01 AM CASE NUMBER: C22-01790
CASE NAME: KATHERINE STAUDT VS. DOES 1 TO 50
***HEARING ON MOTION FOR DISCOVERY TERMINATING SANCTIONS AGAINST PLAINTIFF**
FILED BY: PUREMIST CORPORATION
TENTATIVE RULING:
Summary

Defendant Puremist Corporation's ("Puremist") Motion for Terminating Sanctions against Plaintiff Katherine J. Staudt ("Plaintiff") is **granted** as set forth herein.

Background

This is a personal injury action where Plaintiff Katherine Staudt ("Plaintiff") claims that on September 10, 2020, she slipped and fell at the Safeway store operated by Defendant Albertsons Safeway LLC ("Safeway") located at 1355 Moraga Way, Moraga, CA, due to a dangerous condition maintained by Safeway and/or other defendants. She claimed to have sustained significant injuries in that incident. She brought suit against both Safeway and Puremist.

On November 21, 2025, Puremist filed this Motion for Terminating Sanctions against Plaintiff ("Motion"), which was accompanied by a Notice, Amended Notice filed November 26, 2025, Memorandum of Points and Authorities, the Declaration of Counsel Eanna Maria Mejia, and a Proposed Order. Through this Motion, Puremist asserts that Plaintiff has not complied with her obligations to respond to written discovery propounded on March 17, 2025, which includes Form Interrogatories, Special Interrogatories, and a Request for Production of Documents (See Declaration of Ms. Mejia, Exhibit A). Plaintiff's responses were due on April 21, 2025. To date, Puremist claims that Plaintiff did not respond to the discovery requests.

Subsequently, on October 29, 2025, this Court heard Puremist's Motion to Compel Discovery Reponses to the discovery propounded on March 17, 2025. Plaintiff did not oppose this Motion. Accordingly, the Court granted Defendant's Motion to Compel, ordering Plaintiff to produce verified responses to Puremist's Form Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One, no later than 15 days from the Notice of Entry of Order. The Court further ordered an award of sanctions to Puremist in the amount of $510.00. To date, Plaintiff has not produced any response to discovery served over one year ago.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days… before the hearing." Nine court days before the hearing of this Motion is March 12, 2026. Plaintiff, in *propria persona*, failed to file a timely opposition to this Motion by March 12, 2026. On March 18, 2026, Puremist filed a reply brief confirming that no timely opposition was provided by Plaintiff to Puremist.

Analyses

Self-Represented Litigants are Subject to the Rules of Discovery

The Court is aware that Plaintiff is proceeding without an attorney in her lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also R*appleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assura*nce (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523. The rules apply to all motions pursued under the Discovery Act, which is governed by the Code of Civil Procedure.

Nevertheless, "'[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. … [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants. Indeed, the Court's prior rulings and orders to comply with her discovery obligations in previous motions set forth compliance dates, which Plaintiff failed to obey. Plaintiff has also filed her own motions to quash subpoenas issued for her medical records. Accordingly, it appears to the Court that Plaintiff has some awareness of Discovery Rules. Plaintiff is not excused from following the rules that govern discovery. She is not entitled to avoid compliance with this Court's order of October 29, 2025, which was filed on October 30, 2025.

Non-Opposition

California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410) (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See local rules: https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings. Here, the Court finds that Plaintiff's non-opposition is deemed to be her concession that this Motion has merit.

Terminating Sanctions

While this motion is unopposed, the Court is mindful of its duty to exercise terminating sanctions only when legally appropriate. Terminating sanctions under Code of Civil Procedure section 2023.030 authorizes a trial court to impose monetary sanctions, issue sanctions, evidence sanctions, or terminating sanctions against 'anyone engaging in conduct that is a misuse of the discovery process.'" *Doppes v. Bentley Motors, Inc*. (2009) 174 Cal.App.4th 967, 991. Subdivision (d) of section 2023.030 provides, "The court may impose a terminating sanction by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. (2) An order staying further proceedings by that party until an order for discovery is obeyed. (3) An order dismissing the action, or any part of the action, of that party. (4) An order rendering a judgment by default against that party."

The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. 'Discovery sanctions "should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery."' [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.

A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.'" *Doppes*, *supra*, 174 Cal.App.4th at p. 992, fn. omitted, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280 disapproved on other grounds in *Mileikowsky v. West Hills Hospital & Medical Center* (2009) 45 Cal.4th 1259.

The trial court may order a terminating sanction for discovery abuse "after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery." *Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246. The standard of appellate review of a trial court ruling on a terminating sanction is not whether the trial court should have imposed a lesser sanction; rather, the question is whether the trial court abused its discretion by imposing the sanction it chose. *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc*. (2008) 163 Cal.App.4th 1093, 1105.

Applied here, Plaintiff has not complied with this Court's Discovery order dated October 29, 2025. The Court finds that Plaintiff's failure to provide basic information about her claims requested by Puremist's discovery requests severely prejudices Puremist. Puremist cannot move forward in preparing its defense to Plaintiff's claim. The Court finds that Puremist will be severely prejudiced if Plaintiff is permitted to pursue her case against Puremist, and Puremist is precluded from obtaining any evidence to defend itself. The Court finds that Plaintiff's failure to comply with the Court's order is willful, and amounts to an unjustified abuse of discovery, which follows a history demonstrating a spirit of willful non-cooperation in this case. Accordingly, the Court finds and concludes that additional monetary and issues sanctions are insufficient, and a less severe sanction will not yield compliance. In applying the foregoing authorities, the Court finds good cause to make the following orders.

Ruling

1. Puremist's Motion for Terminating Sanctions is **granted**.
2. Pursuant to Cal. Code of Civ. Proc. § 2023.030(d)(3), Defendant Puremist Corporation is **dismissed** with prejudice from this action.
3. Defendant Puremist is the prevailing party under Cal. Code of Civ. Proc. § 1032(a)(4). Puremist shall recover its costs pursuant to Section 1033.5 pursuant to a Memorandum of Costs filed no later than thirty (30) days from the date of this hearing.
4. Puremist shall recover its past sanctions due from Plaintiff in the amount of $510.00.
5. Puremist' Counsel shall prepare and e-file a proposed order conforming to this ruling, attaching a copy of this ruling no later than five (5) days from the date of this hearing.